ANESU GOLD (PRIVATE) LIMITED

Versus

EDIAS MAVEDZENGE

And

THE PROVINCIAL MINING DIRECTOR-MIDLANDS

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 22 April 2026

Application for confirmation of a provisional order

C. Makwara, with Ms. T. Chidyamakono for the applicant
N. Mugiya for the respondent

DUBE-BANDA J:

[1] This matter was set down on the opposed court roll for the confirmation of a provisional order. After hearing the parties, and by consent, I ordered as follows:

"The matter is removed from the roll with no order as to costs."

[2] I have *mero motu* decided to provide reasons which caused this matter to be removed from the roll. However, I will provide neither a detailed background nor the long route that this matter has taken but will briefly canvass facts relevant to the order stated above.

[3] The background facts, relevant to the order stated above, are common cause. On 7 April 2025, the applicant filed an urgent chamber application seeking a provisional order. On 8 February 2025, the urgent chamber application was served on the respondents, and certificates of service were filed with the Registrar. On 10 April 2025, the first respondent filed a notice of opposition contesting the granting of the provisional order. Notwithstanding his opposition, the court granted the provisional order. Thereafter, the parties filed heads of argument, and the matter was set down on the opposed court roll for confirmation of the provisional order.

[4] There is a procedural misstep that occurred in this matter. The applicant did not do what is required to have a matter set down on the opposed court roll for confirmation of a provisional order. In other words, and as will appear in this judgment, the matter was not ripe to be set down for confirmation.

[5] A provisional order, once granted, whether on the papers or after a hearing, must be served on the respondent and proof of service filed with the Registrar. A provisional order is in Form 26, which is deliberately designed to inform the respondent of his or her procedural rights. First, it informs the respondent that a provisional order was issued, and that the annexed chamber application and documents were used in support of the application for the provisional order. Secondly, it informs the respondent, if inclined to oppose the confirmation of the provisional order, of what he or she needs to do to oppose the confirmation of the provisional order. And that should he or she fail to file a notice of opposition within the timeline given, the matter will, without notice, be set down as an unopposed application for confirmation. It further notifies the respondent of what needs to be done should he or she wish the provisional order to be changed or set aside sooner than the rules of court allow.

[6] Form 26, in clear language, provides that a respondent who has been served with a provisional order and wishes to contest its confirmation must file a notice of opposition. Therefore, a respondent, contesting confirmation, cannot seek to rely on the notice of opposition and opposing affidavit filed opposing the granting of the provisional order. In other words, a respondent cannot seek to rely on the notice of opposition filed before the issuing of the provisional order. This point was articulated by GWAUNZA JA (as she then was) in *John Nyakamha* v *Lobels Bread (Private) Limited* SC 4/06, as follows:

> "He indicated that he had filed a notice of opposition and opposing papers. The learned trial judge then stood the matter down in order to give the parties an opportunity to clarify the matter. In his short judgment, the learned trial judge explained what then transpired.
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> > 'On 9 September 2005, after exhaustive presentations by both parties, it turned out that the first respondent had filed papers in opposition to the initial granting of the provisional order, which did not find favour with the court, which proceeded to grant the provisional order. The first respondent did not file any papers in opposition to the confirmation of the provisional order, but erroneously insisted that the papers filed in opposition to the initial granting of the provisional order should be considered as opposition to the confirmation of the provisional order.
> >
> > After a painstaking explanation to the first respondent of the procedures relating to provisional orders, which he appeared to understand, I confirmed the provisional order, because technically, the matter was unopposed and the applicant had satisfied all the requirements for confirmation.'"
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> The judge continued and stated thus:
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> > "The appellant concedes that while he had filed papers opposing the granting of the provisional order in question, he had not, as he was clearly called upon to do by such order, filed any notice and supporting documents opposing the confirmation of the order."

[7] The reason for the requirement that opposing papers filed in opposition to the granting of the provisional order cannot be used to contest the confirmation is not difficult to find. First, Form 26 is clear about the procedural steps a respondent served with a provisional order must take if inclined to oppose its confirmation. Secondly, at the provisional order stage, the opposition will be attacking the application on the basis that no *prima facie* case has been established for the court to grant a provisional order. However, at the confirmation stage, the attack takes a different dimension; it will be directed at showing that the applicant has not proved, amongst other requirements, a case for confirmation. It is in this regard that a notice of opposition filed to contest the granting of the provisional order becomes irrelevant at the confirmation stage.

[8] In *casu*, a notice of opposition was filed to contest the granting of the provisional order, and despite the opposition, the court was inclined to grant the provisional order. It was incumbent on the applicant to serve the provisional order on the respondents and file proof of service with the Registrar. It is immaterial and inconsequential whether the respondent consented to the granting of the provisional order, or was in attendance when it was granted, he or she must be served. As stated above, proof of service was not filed with the Registrar. Without the service of the provisional order, the respondent will have no obligation to file a notice of opposition, and neither can the applicant set down the matter on the unopposed roll for confirmation.

[9] In fact, in this matter, under "service of provisional order" the following appear:

> "Service of this provisional order shall be done by the Sheriff of Zimbabwe, the applicant's legal practitioners or any person in the employ of the applicant's legal practitioners."

[10] The provisional order was not served; this was a serious procedural misstep. As a result of this flaw, the first respondent did not file a notice of opposition to contest the confirmation. At the purported confirmation hearing, he then sought to rely on the notice of opposition filed to contest the granting of the provisional order. It became clear to the parties that without the provisional order having been served, the first respondent had no obligation to file a notice of opposition. Therefore, the heads of argument filed by the parties were of no consequence.

[11] It is for these reasons that the applicant conceded, and rightfully so, that the application for confirmation was set down prematurely, i.e., before the provisional order was served on the respondents. In other words, the application was not ripe for setting down for confirmation. I underscore that it is a requirement that an applicant must serve the provisional order and file with the Registrar proof of service. If thereafter, a notice of opposition is filed, then confirmation will be opposed, and the matter must be set down on the opposed roll. If no notice of opposition has been filed, confirmation would not be opposed, and the matter may be set down on the unopposed roll for confirmation.

[12] For completeness, I underscore that it is a requirement that an applicant seeking confirmation of a provisional order must file a draft order for confirmation. In terms of r 58 (3) of the High Court Rules, 2021, every written application shall contain a draft of the order sought. Therefore, this practice of litigants not filing draft orders for confirmation is incorrect. In general, a draft order for confirmation must contain the terms of the final order sought in the provisional order, unless the court has allowed an amendment. To its credit, the applicant in this case filed a draft order for confirmation.

[13] It is for the above reasons that the application for confirmation was removed from the roll.

Mutendi, Mudisi Shumba, Legal Practitioners, applicant's legal practitioners
Mugiya Law Chambers, 1st respondent's legal practitioners